

## 25SMCV03096 25SMCV03096

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-06-24

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Case Number: 25SMCV03096 Hearing Date: June 24, 2026 Dept: M

CASE NAME: Sajid v. Beverly

Hills Properties LLC, et al.

CASE NO.: 25SMCV03096

MOTION: Motion

for Attorneys' Fees

HEARING DATE: 6/24/2026

Legal

Standard

"Under

Code of Civil Procedure section 425.16, subdivision (c), any SLAPP defendant

who brings a successful motion to strike is entitled to mandatory attorney

fees. The fee-shifting provision was apparently intended to discourage such

strategic lawsuits against public participation by imposing the litigation

costs on the party seeking to chill the valid exercise of the constitutional

rights of freedom of speech and petition for the redress of grievances. The fee-shifting provision also encourages private representation in SLAPP cases, including situations when a SLAPP defendant is unable to afford fees or the lack of potential monetary damages precludes a standard contingency fee arrangement.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131.)

“It is well established that

the determination of what constitutes reasonable attorney fees is committed to

the discretion of the trial court, whose decision cannot be reversed in the

absence of an abuse of discretion. [Citation.]” (Melnyk v. Robledo

(1976) 64 Cal.App.3d 618, 623 624.) The fee setting inquiry in California

ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours

reasonably expended multiplied by the reasonable hourly rate.” (Graciano v.

Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “[A]

computation of time spent on a case and the reasonable value of that time is

fundamental to a determination of an appropriate attorneys’ fee award.” (Margolin

v. Reg’l Planning Comm’n (1982) 134 Cal.App.3d 999, 1004.) The lodestar

figure may then be adjusted, based on consideration of factors specific to the

case, in order to fix the fee at the fair market value for the legal services

provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49 [discussing

factors relevant to proper attorneys’ fees award].) Such an approach anchors

the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271.)

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

Analysis

Defendants Beverly Hills Properties

LLC and Diana Kleiner move for an award of attorneys' fees against Plaintiff

Salman Sajid in the amount of \$24,389.00 in attorney's fees

and \$784.88

in costs.

Defendants are entitled to fees as

the prevailing parties on a special motion to strike. However, they have not demonstrated that they

are entitled to the requested fee award. Defendants do not provide any

evidentiary record supporting any lodestar, i.e., counsel's reasonable rate and

time spent on the underlying anti-SLAPP motion. While the notice of motion

referencing declarations regarding fees, no declaration was filed in support of

the motion.

Defendants also did not attach proof of service. However, on June 22, 2026, Plaintiff filed an

untimely opposition to the motion so Plaintiff did receive notice.

For these reasons, the motion is DENIED without prejudice.